

25STCV14514 25STCV14514

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-18

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Case Number: 25STCV14514 Hearing Date: August 18, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

39

HEARING DATE

August 18, 2026

CASE NUMBER

25STCV14514

MOTION

Motion to Compel Discovery Responses

MOVING PARTY

Plaintiff Kristine Bustos

OPPOSING PARTY

None

MOTIONS

Plaintiff

Kristine Bustos ("Plaintiff") moves to compel responses from Defendant Shanntal Collette Arenas ("Defendant") to Form Interrogatories, set one ("FROG"), Special Interrogatories, set one ("SROG"), and Requests for Production, set one ("RPD"). Plaintiff also moves to deem admitted matters specified in Requests for Admissions, set one ("RFA"). Defendant has not opposed the motion.

ANALYSIS

Plaintiff served

the FROG, SROG, RPD, and RFA on Defendant on February 12, 2026 by email. Defendant's responses were thus due by March

17, 2026. As of the filing date of this

motion, Defendant had not responded to the discovery. Accordingly, the motion to compel responses

to the FROG, SROG, and RPD is granted pursuant to Code of Civil Procedure

sections 2030.290 and 2031.300. Defendant

is ordered to serve verified responses to Plaintiff's FROG, SROG, and RPD without

objections, within 30 days of service of this order.

When a party fails

to respond to requests for admissions, the propounding party may move for an

order the genuineness of any documents and the truth of any matters specified

in the requests be deemed admitted and for a monetary sanction. (Code of Civ. Proc., § 2033.280, subd. (b).) The Court "shall" grant a motion to deem

admitted the matters specified in the requests for admissions, "unless it finds

that the party to whom the requests for admission have been directed has

served, before the hearing on the motion, a proposed response to the requests

for admission that is in substantial compliance with Section 2033.220." (Code

of Civ. Proc., § 2033.280, subd. (c).) As

Defendant has not replied to the RFA, the Court grants the motion to deem

admitted matters specified in the RFA.

Plaintiff requests sanctions in connection

with the motion. The Court concludes Defendant's

failure to serve responses to the discovery constitutes an abuse of the

discovery process and awards sanctions. The

Court imposes sanctions against Defendant in the amount of \$2,010, which

represents three hours of attorney time to prepare the motion and attend the

hearing at \$650 per hour, plus the filing fee.

CONCLUSION AND ORDER

Plaintiff's motion to compel responses to the FROG, SROG, and RPD is granted. Defendant is to serve verified responses, without objections, within 30 days of notice of this order.

Defendant is deemed to have admitted matters specified in the RFA as of this date.

Defendant is to pay sanctions in the amount of \$2,010 to Plaintiff, by and through Plaintiff's Counsel, within 30 days of notice of this order.

Plaintiff is ordered to provide notice of the Court's ruling and to file proof of service of same.